

moving party.

11. 9:00 AM CASE NUMBER: N25-0754

CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA

HEARING ON DEMURRER TO: PETITIONER'S VERIFIED PETITION FOR WRIT OF MANDATE

((CONTINUED FROM 03.27.2026))

FILED BY:

TENTATIVE RULING:

As discussed below, the **demurrers are sustained, without leave to amend**. The **motions to strike are denied as moot**.

I. Background Common to the Four Petitions

Kenneth Lee Storey was allegedly injured when Paul George Nelson mishandled a firearm. Storey retained counsel and filed a personal injury lawsuit, *Kenneth Lee Storey v. Paul George Nelson*, Contra Costa Superior Court, Case No. C17-02127. In November of 2018 Storey obtained a default judgment in the amount of \$1,205,333.37 against Nelson. On April 25, 2019, an Abstract of Judgment was recorded with the Contra Costa County Recorder's Office naming Storey as a judgment creditor.

Judgment debtor Nelson then failed to pay property taxes and respondents sold the property to recover the taxes owed on May 24, 2023. The tax deed was recorded on June 13, 2023, reflecting that, after satisfaction of all delinquent taxes, the 'excess proceeds' are \$361,007.97. The County gave notice to certain parties, including Storey. Several parties filed claims, not including Storey. All the claims were denied except a claim by the Franchise Tax Board, which was paid \$4,847.68 from the funds based on a claim it had submitted.

The present consolidated matter involves four separate petitions for writs of mandate, among other claims, filed by those parties that filed claims to the funds. Each of petitioners' claims stem from the original default judgment in favor of Storey. Petitioners seek to compel the respondents (Contra Costa County and its Treasurer-Tax Collector, Dan M. Mierzwa) to set aside the denials of petitioners' claims and release the excess proceeds from the sale of this property to them according to their claimed interests. The four actions were consolidated for all purposes on February 2, 2026 pursuant to Code of Civil Procedure section 1048 and stipulation of the parties.

The Court now rules on the four demurrers filed by respondents pursuant to California Code of Civil Procedure sections 430.10, subdivision (e) (relating to a demurrer for failure to state facts sufficient to constitute a cause of action), 1089 (providing that "[o]n the date [...] on which the application for the writ is noticed, [...] the party upon whom the writ or notice has been served may make a return by demurrer [...]"), and 1109 (providing for the applicability of statutes governing civil actions to writ proceedings), and California Revenue and Taxation Code section 4675 (relating to the disbursement of excess proceeds).

II. Legal Background

The court in *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116, quoted below, sets

forth the legal background against which the present matter proceeds.

The general revenue of a city and county is collected by a tax on all nonexempt real property within the jurisdiction of the taxing agency. [Citation.] Under the statute, tax on real property is a lien against the property assessed. [Citation.] If the tax is unpaid, a default is declared and tax-defaulted residential property may be sold after five years of delinquency. [Citation.] Tax-defaulted property is generally sold at public auction to the highest bidder. [Citation.] The sale proceeds are used to pay taxes and costs. [Citation.] Any excess in the sale proceeds is held in a trust fund and “parties of interest” in the property have one year to file a claim for the excess proceeds. [Citation.] Unclaimed proceeds are transferred to the county general fund. [Citation.]

[...]

Section 4675 was enacted after “a 74-year-old widow was evicted” from the home she lived in for almost 50 years “because she hadn’t paid \$493 in back taxes. The home was sold for \$7,500 and the county and other local governmental agencies kept all of the money in accordance with existing state law.” [Citation.] The Legislature found that then-existing law “over-reimburses local agencies for delinquent taxes when the proceeds of sale exceed taxes, interest and penalties” and introduced legislation to ensure that “realized equity in excess of taxes due would be returned to the former owner.” [Citation.] The bill was “designed to insure that no one—whether private or a public agency—will receive a windfall profit from the sale of tax deeded property. It sets forth an equitable procedure for settling obligations in the event of a tax sale.” [Citation.]

When first introduced, the bill provided that excess proceeds could be claimed by “the former owner of the property or his successor in interest.” [Though certain amendments have been made to the text of the statute], legislative and executive reports continued to summarize the law as one providing excess proceeds to the “former owner.” [Citation.]

(*Carloss, supra*, 242 Cal.App.4th at 126, 128-129.)

Revenue and Taxation Code section 4675 currently states, in relevant part:

(a)

(1) Any party of interest in the property may file with the county a claim for the excess proceeds, in proportion to that person’s interest held with others of equal priority in the property at the time of sale, at any time prior to the expiration of one year following the recordation of the tax collector’s deed to the purchaser.

(2) The claim shall be postmarked on or before the one-year expiration

date to be considered timely. [...].

(b) After the property has been sold, a party of interest in the property at the time of the sale may assign their right to claim the excess proceeds only by a dated, written instrument that explicitly states that the right to claim the excess proceeds is being assigned, and only after each party to the proposed assignment has disclosed to each other party to the proposed assignment all facts of which that party is aware relating to the value of the right that is being assigned. Any attempted assignment that does not comply with these requirements shall have no effect. This subdivision applies only with respect to assignments on or after the effective date of this subdivision.

(c) Any person or entity who in any way acts on behalf of, or in place of, any party of interest with respect to filing a claim for any excess proceeds shall submit proof with the claim that the amount and source of excess proceeds have been disclosed to the party of interest and that the party of interest has been advised of their right to file a claim for the excess proceeds on their own behalf directly with the county at no cost.

(d) The claims shall contain any information and proof deemed necessary by the board of supervisors to establish the claimant's rights to all or any portion of the excess proceeds.

(e)

(1) [...] no sooner than one year following the recordation of the tax collector's deed to the purchaser, and if the excess proceeds have been claimed by any party of interest as provided herein, the excess proceeds shall be distributed on order of the board of supervisors to the parties of interest who have claimed the excess proceeds in the order of priority set forth in subdivisions (a) and (b). For the purposes of this article, parties of interest and their order of priority are:

(A) First, lienholders of record prior to the recordation of the tax deed to the purchaser in the order of their priority.

(B) Second, any person with title of record to all or any portion of the property prior to the recordation of the tax deed to the purchaser.

[...]

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.) A court properly sustains a demurrer without leave

to amend when the facts are not in dispute and the nature of the plaintiff's claim is clear, but, under the substantive law, no liability exists. (*Traverso v Department of Transp.* (2001) 87 Cal.App.4th 1142, 1144.)

IV. Petition of Rains Lucia Stern St. Phalle & Silver, PC, N25-0756

A. Factual Background

Beginning on September 15, 2016, Rains Lucia Stern St. Phalle & Silver, PC ("Rains Lucia") represented Storey in his suit against judgment debtor Nelson. Pursuant to the firm's retainer agreement, Storey agreed to pay petitioner attorneys' fees in the amount of "forty percent (40%) of the gross amount recovered before deducting costs and expenses after a claim or lawsuit is filed." (Rains Lucia Petition filed April 10, 2025, Ex. 1.)

On April 25, 2019, Rains Lucia filed an Abstract of Judgment with the Contra Costa County Recorder's Office, as instrument no. 2019-0058109-00. The Abstract of Judgment named Storey as the judgment creditor. (Rains Lucia Petition, Ex. 2.) On January 10, 2020, Rains Lucia, Vantage Point Law, and their client, Kenneth Storey, executed an Addendum to Retainer Agreement Related to Attorney Fee Division, which allocated forty percent (40%) of the total gross recovery as follows: 50% to Rains Lucia; 25% Vantage Point Law; and 25% to the referring attorneys, the Law Office of McDonald & Mannion. (Rains Lucia Petition, ¶26.)

In March, 2021, the Superior Court issued an Order for the sale of Nelson's real property at issue here, with any proceeds to be used to satisfy the judgment and a Sheriff's sale took place, but there were no bidders so the property was not sold. (Rains Lucia Petition, ¶31.) Later the property was sold at a tax default sale and, as a "party of interest," Rains Lucia was sent a notice by the County of the excess proceeds once the tax sale deed had been recorded. (Rains Lucia Petition, ¶47, Ex. 9.) On May 17, 2024, almost a year after the tax deed was recorded, Rains Lucia submitted a claim to excess proceeds to the County Treasurer-Tax Collector. (Rains Lucia Petition, ¶¶48-49, Ex. 10.)

While it did not initially receive a denial from the County, Rains Lucia learned that Vantage Point Law had received a denial letter and contacted the County, which then emailed a similar denial to Rains Lucia. The letter stated that the claims was denied because, "a claim (or claims) of higher priority was awarded the excess proceeds." (Rains Lucia Petition, ¶51, Ex. 12.) On April 9, 2025, the County Tax Collector's office sent an email to Rains Lucia, referencing a second letter denying the claim based on Rains Lucia not being a "lienholder of record." (Rains Lucia Petition, ¶52.)

Petitioner filed its petition on April 10, 2025 alleging three causes of action: (1) Writ of Mandate Pursuant to Code of Civil Procedure § 1085, (2) Writ off Mandate Pursuant to Code of Civil Procedure §1094.5, and (3) Declaratory Relief Pursuant to Code of Civil Procedure §1060. Following meet and confer efforts (see Declaration of Jaskiran K. Samra, ¶8), respondents filed this demurrer.

B. Objections to Evidence

Respondents object to the Declaration of Eustace De Saint Phalle in Support of Rains Lucia's Opposition, filed March 23, 2026. The standard on demurrer does not permit the Court to consider the truth of facts not alleged or subject to judicial notice. Accordingly, the objection is **sustained**.

C. Discussion

(1) Administrative Mandamus Pursuant to Code of Civil Procedure section 1094.5

Respondents demur on the basis that there was no hearing, nor was one required, and therefore administrative mandamus is not a remedy available to petitioner. The petition gives no

indication that a hearing was held or required, as required for section 1094.5 to apply. (Code Civ. Proc., §1094.5, subd. (a).)

In arguing that 1094.5 does apply, petitioner cites *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116, wherein the court proceeded under the administrative mandate statute in deciding a matter regarding excess proceeds. However, in that case, “the county held an evidentiary hearing to evaluate the claims,” presided over by a hearing officer. (*Carloss, supra*, 242 Cal.App.4th at 121-122.) Further, the other cases cited by petitioner do not support the application of 1094.5. (*Mission Valley East, Inc. v. County of Kern* (1981) 120 Cal.App.3d 89, 99, fn. 6 [“This is a ‘common law’ or traditional mandamus proceeding under Code of Civil Procedure section 1085, not administrative mandamus under section 1094.5.”]; *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, 1371 [not mentioning whether mandamus was traditional or administrative].)

A hearing is not contemplated by the statute at issue, and no hearing was held. The petition has been improperly submitted under Code of Civil Procedure section 1094.5, which applies only where the validity of a “final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer,” is under review. (Code Civ. Proc., §1094.5, subd. (a).) The more complex analysis of when an administrative writ may be proper even in the absence of a hearing do not apply to the determination at issue here.

The demurrer is appropriately sustained as to the cause of action for administrative mandamus. Leave to amend would be permitted if the only concern was the type of mandate being sought, but that is not the only defect here. There is a more fundamental issue that Rains Lucia cannot state a claim for relief because it is not a lienholder of record.

(2) Rains Lucia is Not a Lienholder of Record or Otherwise Entitled to Claim the Excess Funds

Respondents argue that a “lienholder of record,” for purposes of excess proceeds, is a person who has or owns a lien that appears within public records after recording, or who can prove they had a recorded lien through other recorded documents. The demurrer cites various authorities for this position, perhaps the most persuasive of which is *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, wherein the appellate court held that the trial court wrongly directed a county auditor’s office to pay a claimant who was the holder of only an unrecorded title to property sold at tax sale. While parties agree that case did not directly address the meaning of “lienholder of record,” the case discussed the meaning of a related term, “person with title of record,” used in the same statute and construed it to mean “a holder of recorded title.” (*Id.* at 1373.) The same meaning should generally be attributed to a term or phrase when it is used in a similar manner in two related statutes concerning the same subject. (*Dieckmann v. Superior Court* (1985) 175 Cal.App.3d 345, 356.)

Rains Lucia opposes the point, arguing that its lien became operative “automatically” at the time of judgment and when the judgment was recorded. Such argument would impose an impossible burden on the respondents to seek out whether every attorney relationship resulted in some sort of lien not apparent from the public record.

Petitioner’s abstract does not create any obvious interest as to Rains Lucia, only as to Storey. While the abstract lists Rains Lucia as Storey’s attorneys, the “attorney fees” portion of the form is blank. The form further notes that “[a]ll judgment creditors and debtors are listed on this abstract.” Accordingly, Storey is the judgment creditor and Rains Lucia is not a lienholder “of record.”

While Rains Lucia might have been able to assist its client with filing a claim to excess proceeds, it was not entitled to claim the proceeds on its own behalf. That is what Rains Lucia attempted to do. The claim form does not purport to be seeking anything on Storey's behalf.

If Rains Lucia was entitled to a lien on Storey's recovery, it first had to ensure Storey would recover something and then seek its portion with respect to him. By seeking the funds on its own behalf, Rains Lucia sought to bypass this necessary step. (See *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, 1373-1374 [applying the plain terms of § 4657 to limit claimants to holders of "title of record," and questioning the rationale and holding of *Fjaeran v. Board of Supervisors* (1989) 210 Cal.App.3d 434 to the extent it did not follow the statute's terms].) A lien for attorneys' fees is, in reality, "an equitable assignment for security." (*Wagner v. Sariotti* (1943) 56 Cal.App.2d 693, 697; see also *First Corp. v. County of Santa Clara* (1983) 146 Cal.App.3d 841, 842 [claiming parties do not succeed to the rights of the nonclaiming parties].)

V. Petition of Vantage Point Law, Inc., N25-0754]

A. Factual Background

Petitioner, Vantage Point Law, Inc., is a law firm that, on January 10, 2020, entered into a limited scope agreement for collection of the Storey's judgment with Rains Lucia and Storey himself. (Vantage Point Law Petition, filed April 10, 2025, ¶¶18-19, Ex. 5-6.) The agreement states petitioner's attorneys' fees for "enforcement of the Judgment will be ten percent (10%) of the gross sum recovered before deducting costs and expenses." (*Ibid.*)

Respondents mailed a Notice of Excess Proceeds to Storey via his attorneys, Rains Lucia, or about June 16, 2023, three days after the tax deed was recorded. (Vantage Point Law Petition, ¶27.) Almost a year later, on May 9, 2024, Vantage Point Law submitted a claim to \$186,082 from the excess proceeds. (Vantage Point Law Petition, ¶28, Ex. 11.) While preparing its claim, Vantage Point Law discovered that Storey had assigned his judgment to Capital Equity Management Group, Inc. (CEMG) and Vantage Point Law submitted a "NOTICE OF LIEN FOR ATTORNEYS' FEES AND COSTS; AND VERIFIED THIRD PARTY CLAIM OF SECURITY INTEREST PURSUANT TO CCP§§720.210 ET SEQ." which asserted that the assignment to CEMG was made with its lien attached pursuant to California Civil Code §2883(a). (See Vantage Point Law Petition, Ex. 12, "Notice," signed May 8, 2024, 5:21-26.)

Respondents acknowledged receipt of the claim on May 9, 2024, stating the claim was timely received. (Vantage Point Law Petition, ¶30, Ex. 13.) Petitioner was never notified that its claim was incomplete. (*Id.* at ¶31.) Respondents sent Vantage Point Law a letter dated January 10, 2025, stating that "a claim (or claims) of higher priority was awarded the excess proceeds." (*Id.* at ¶33.)

Vantage Point Law sent respondents a letter on February 13, 2025 stating that County's policy is for the Tax Collector's Office to either approve or deny the claim, in whole or in part, and notify the claimant of the decision. (Vantage Point Law Petition, ¶37.) As of February 13, 2025, Vantage Point Law had not been informed whether or not the claim was denied. (*Ibid.*) Pursuant to a Freedom of Information Act request, the County provided one claim, submitted by the Franchise Tax Board, for \$4,847.68. Vantage Point Law alleges the County overlooked the Franchise Tax Board's discrepancies in its claim and gave that entity preferential treatment. (Vantage Point Law Petition, ¶38.)

On or about February 28, 2025, the Tax Collector's Office sent a letter to "clarify" its January 10th Letter, in which the office took the position that Vantage Point Law, Inc.'s claim was denied because it was not a "lienholder of record." (Vantage Point Law Petition, ¶39, Ex. 17.) Petitioner alleges this representation was false (arbitrary and capricious) and that the respondents are engaged

in self-dealing as a result. (Vantage Point Law Petition, ¶¶40-43.)

Vantage Point Law alleges respondents violated their legal duties pursuant to Revenue and Taxation Code sections 4674 through 4676 in that they failed to, among other things: (a) properly review the claims, supporting evidence, and applicable laws; (b) grant Petitioner's claim, and (c) issue the Excess Proceeds to Petitioner. Vantage Point Law sets forth three causes of action: one for traditional mandate, one for administrative mandate, and one for declaratory and injunctive relief.

Respondents, after meeting and conferring with petitioner (Declaration of Jaskiran K. Samra, ¶8), now demur to each cause of action.

B. Discussion

(1) Administrative Mandamus Pursuant to Code of Civil Procedure section 1094.5

Respondents demur on the basis that there was no hearing, nor was one required, and therefore administrative mandamus is not a remedy available to petitioner. The petition gives no indication that a hearing was held or required, as required for section 1094.5 to apply. (Code Civ. Proc., §1094.5, subd. (a).)

In arguing that 1094.5 does apply, petitioner cites *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116, wherein the court proceeded under the administrative mandate statute in deciding a matter regarding excess proceeds. However, in that case, “the county held an evidentiary hearing to evaluate the claims,” presided over by a hearing officer. (*Carloss, supra*, 242 Cal.App.4th at 121-122.) Further, the other cases cited by petitioner do not support the application of 1094.5. (*Mission Valley East, Inc. v. County of Kern* (1981) 120 Cal.App.3d 89, 99, fn. 6 [“This is a ‘common law’ or traditional mandamus proceeding under Code of Civil Procedure section 1085, not administrative mandamus under section 1094.5.”]; *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, 1371 [not mentioning whether mandamus was traditional or administrative].)

A hearing is not contemplated by the statute at issue, and no hearing was held. The petition has been improperly submitted under Code of Civil Procedure section 1094.5, which applies only where the validity of a “final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer,” is under review. (Code Civ. Proc., §1094.5, subd. (a).) The more complex analysis of when an administrative writ may be proper even in the absence of a hearing do not apply to the determination at issue here.

The demurrer is appropriately sustained as to the cause of action for administrative mandamus. Leave to amend would be permitted if the only concern was the type of mandate being sought, but that is not the only defect here. There is a more fundamental issue that Vantage Point cannot state a claim for relief because it is not a lienholder of record.

(2) Vantage Point Law is Not a “Lienholder of Record” or Otherwise Entitled to Claim the Excess Funds

Respondents contend the petition fails to state a cause of action. Specifically, respondents contend: (1) petitioner is not a “lienholder of record,” (2) no lien on excess proceeds can be placed via equitable assignment where the petitioner’s client does not first recover the funds, (3) the right to collect excess proceeds must be specifically assigned, which the alleged equitable assignment fails to do, and (4) petitioner lacked authorization to submit a claim for excess proceeds on its client’s behalf.

Respondents argue that a “lienholder of record,” for purposes of excess proceeds, is a person

who has or owns a lien that appears within public records after recording, or who can prove they had a recorded lien through other recorded documents. The demurrer cites various authorities for this position, perhaps the most persuasive of which is *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, wherein the appellate court held that the trial court wrongly directed a county auditor's office to pay a claimant who was the holder of only an unrecorded title to property sold at tax sale. While parties agree that case did not directly address the meaning of "lienholder of record," the case discussed the meaning of a related term, "person with title of record," used in the same statute and construed it to mean "a holder of recorded title." (*Id.* at 1373.) The same meaning should generally be attributed to a term or phrase when it is used in a similar manner in two related statutes concerning the same subject. (*Dieckmann v. Superior Court* (1985) 175 Cal.App.3d 345, 356.)

Vantage Point Law opposes the point, arguing that the existence of an attorney lien pursuant to Civil Code §2833, is "secret" and, while not necessarily apparent from any recorded document, would still make Vantage Point Law a lienholder. But the argument brushes over the "of record" requirement.

The opposition cites *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116 as supporting its position that it need not be reflected in the public record to have a lien. After all, section 4675 was enacted "to insure that no one—whether private or a public agency—will receive a windfall profit from the sale of tax deeded property." (*Carloss, supra*, 242 Cal.App.4th at 128.) *Carloss* involved a significantly different situation in which the lienholder simply did not possess the proof typically used in such a situation (a recorded deed) to show that it was a "lienholder of record." Instead, the lienholder there simply had to resort to other recorded documents as proof. (*Carloss, supra*, 242 Cal.App.4th at 131.) *Carloss* did not involve a "secret" lien.

As discussed in the reply brief filed by respondents, there is no presumption that the excess proceeds must be distributed to parties of interest where they are not properly claimed. (*First Corp. v. County of Santa Clara* (1983) 146 Cal.App.3d 841, 846-847.) The only recorded document that can be said to support Vantage Point Law's lien is the Abstract of Judgment recorded in April 2019, but that document only lists Storey as a lienholder of record. (Vantage Point Law Petition, Exhibit 1.) Storey made no claim on the excess proceeds. Accordingly, Vantage Point Law has not right as a "lienholder of record."

While Vantage Point Law might have been able to assist its client with filing a claim to excess proceeds, it was not entitled to claim the proceeds on its own behalf. That is what Vantage Point Law attempted to do. The claim form does not purport to be seeking anything on Storey's behalf.

Respondents further point out that Vantage Point Law's rights were to the Storey's *recovery* and not the total judgment. If Vantage Point Law was entitled to a lien on Storey's recovery, it first had to ensure Storey would recover something and then seek its portion with respect to him. By seeking the funds on its own behalf, Vantage Point Law sought to bypass this necessary step. (See *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, 1373-1374 [applying the plain terms of § 4657 to limit claimants to holders of "title of record," and questioning the rationale and holding of *Fjaeran v. Board of Supervisors* (1989) 210 Cal.App.3d 434 to the extent it did not follow the statute's terms].) A lien for attorneys' fees is, in reality, "an equitable assignment for security." (*Wagner v. Sariotti* (1943) 56 Cal.App.2d 693, 697; see also *First Corp. v. County of Santa Clara* (1983) 146 Cal.App.3d 841, 842 [claiming parties do not succeed to the rights of the nonclaiming parties].)

While Vantage Point Law had lien rights in relation to Storey, Vantage Point Law had no lien rights absent Storey's submitting a claim for excess proceeds. Notably, the claim here was not

submitted *on behalf* of Storey, and even if it were, as respondents point out, it did not conform to the requirements of a claim submitted on behalf of another. (Rev. & Tax. Code, § 4675 (c) [requiring proof that certain disclosures were made when claimant seeking funds on someone else's behalf].) While the opposition argues attorneys are permitted to, and do, act on their clients' behalf frequently, the argument fails to address the specific statutory requirements of section 4675.

C. Leave to Amend

Because petitioner does not provide any facts supporting the position that amendment could cure the deficiencies discussed herein, and the Court finds there is no reasonable probability the complaint can be cured by amendment, leave to amend is denied. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687.)

VI. Petition of McDonald & Mannion, a California Professional Corporation, N25-0837

Respondents' demurrer to the petition filed by McDonald & Mannion is unopposed. (Notice of Non-Opposition filed March 16, 2026.) Respondents' motion to strike is also unopposed. Petitioner, as the referring attorney in the underlying personal injury action, concedes its rights are derivative of those asserted by Rains Lucia Stern St. Phalle & Silver, PC (the law firm responsible for obtaining the 2018 judgment). Accordingly, because the Court has sustained the demurrer to the petition of Rains Lucia, discussed above, the demurrer to the petition by McDonald & Mannion is also **sustained** and the motion to strike denied as **moot**.

VII. Petition of Global Discoveries, Ltd., N25-0755

A. Factual Background

Petitioner Global Discoveries Ltd. ("Global") is a limited liability company organized and existing under the laws of the State of Nevada, is authorized to conduct business in the State of California, and is a subsidiary of Capital Equity Management Group, Inc., a California corporation ("CEMG"). On February 21, 2023, in spite of any purported attorney liens, Storey assigned his rights in the judgment to CEMG. An Acknowledgment of Assignment of Judgment was recorded in the County's public records. (Global's First Amended Petition, filed October 2, 2025, ¶19, Ex. 2.)

Global alleges, on information and belief, that it was identified as the only party of interest on a report given to County on or about March 16, 2023. (Global's First Amended Petition, ¶17, Ex. 4.) Notably the report reflects CEMG, not Global, but on May 24, 2023, CEMG assigned to Global (CEMG's subsidiary) its rights to collect the excess proceeds. (See Global's First Amended Petition, ¶18, Ex. 5.) Global then submitted a claim for the funds on June 20, 2023. (Global's First Amended Petition, ¶19, Ex. 6.)

Respondents denied Global's claim, giving the reason that Global failed to include certain corporate documents required by the County of Contra Costa Policy Regarding Claims for Excess Proceeds. (See Global Petition, ¶127 and Request for Judicial Notice in Support of Demurrer, filed November 3, 2025, Ex. B.)

Global filed a petition for writ of mandate on April 10, 2025 and amended its petition on October 2, 2025. In the First Amended Petition, Global sets forth a single cause of action for an administrative writ of mandate pursuant to Code of Civil Procedure section 1094.5 and Revenue and Taxation Code section 4675, subdivision (g). Global seeks a writ directing respondents (1) to set aside the denial of Global's claim for excess proceeds as well as any decision to grant the claims of others, and (2) ordering respondents to release the proceeds to Global.

Respondents, after meeting and conferring with petitioner (Declaration of Jaskiran K. Samra, ¶4), now demurs on the grounds that (1) no relief is stated under Code of Civil Procedure section 1094.5 because that section does not apply, (2) even assuming section 1094.5 applies, Global cannot establish any abuse of discretion because the claim did not comply with the County's policy.

B. Request for Judicial Notice

To support their demurrer, respondents request that the Court take judicial notice of: (A) the County's Policy Regarding Claims for Excess Proceeds and the Board of Supervisor's resolution that adopted it in 2017; and (B) a "Claim Denial" letter from the County to Global Discoveries Ltd. dated March 20, 2025. Petitioner does not oppose the request, and the request is **granted**.

C. Administrative Mandamus Pursuant to Code of Civil Procedure section 1094.5

Respondents demur on the basis that there was no hearing, nor was one required, and therefore administrative mandamus is not a remedy available to petitioner. The petition gives no indication that a hearing was held or required, as required for section 1094.5 to apply. (Code Civ. Proc., §1094.5, subd. (a).)

In arguing that 1094.5 does apply, petitioner cites *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116, wherein the court proceeded under the administrative mandate statute in deciding a matter regarding excess proceeds. However, in that case, "the county held an evidentiary hearing to evaluate the claims," presided over by a hearing officer. (*Carloss, supra*, 242 Cal.App.4th at 121-122.) Further, the other cases cited by petitioner do not support the application of 1094.5. (*Mission Valley East, Inc. v. County of Kern* (1981) 120 Cal.App.3d 89, 99, fn. 6 ["This is a 'common law' or traditional mandamus proceeding under Code of Civil Procedure section 1085, not administrative mandamus under section 1094.5."]; *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, 1371 [not mentioning whether mandamus was traditional or administrative].)

A hearing is not contemplated by the statute at issue, and no hearing was held. The petition has been improperly submitted under Code of Civil Procedure section 1094.5, which applies only where the validity of a "final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer," is under review. (Code Civ. Proc., §1094.5, subd. (a).) The more complex analysis of when an administrative writ may be proper even in the absence of a hearing do not apply to the determination at issue here.

Leave to amend would be permitted if the only concern was the type of mandate being sought, but that is not the only defect here.

D. Incomplete Nature of Claim

As stated on its Claim, Global claimed excess proceeds as an assignee of a party of interest. This sort of claim is described in Revenue and Taxation Code section 4675, subdivision (b). The County's Policy requires a business making this sort of claim to "submit documents that show the business and claimant's right to make a claim." (Request for Judicial Notice, Ex. County of Contra Costa Policy Regarding Claims for Excess Proceeds, page 10, at 4.c.) Appendix B then lists the information required of a limited liability company:

A claimant making a claim on behalf of a limited liability company must provide proof claimant is a manager or officer of the limited liability company who has authority to make a claim on behalf of the company. The documentation also

must show the legal standing of the limited liability company. Suggested documents include the following:

- a. Company's resolution.
- b. Company's operating agreement.
- c. Articles of Organization.
- d. The most recent Statement of Information filed with the Secretary of State (or equivalent from state in which business operates). If the business e-filed the Statement of Information, provide a copy of the Statement of Information and a copy of the payment receipt provided by the Secretary of State.
- e. Certificate of Dissolution, if applicable.
- f. Other documents that prove claimant is a manager or officer of the limited liability company.

The demurrer contends the specified information was not included. It gives the example of the individual who signed the claim, Jed Byerly, for whom no proof was submitted to show he was, in fact, a managing member of the company. The only corporate documents submitted related to the alleged parent company, CEMG, not Global. The claim was thus incomplete.

In opposition to the demurrer, Global argues that this aspect of the demurrer disregards the allegations of Global's First Amended Petition. Global contends that the respondents had its information "on file" and that other Tax Collectors had approved other claims for excess proceeds with similar documentation. Those other claims are not properly before the Court at this time. The assertions are therefore not proof that the claim at issue *in this case* was sufficient to warrant a writ of mandate to approve the claim. More importantly, the past failure to follow its own policy is no reason for the Court to mandate that respondents ignore their own policy going forward.

The County's policy states that "[a] claimant may not rely on the Treasurer-Tax Collector's Office to approve or request information to supplement incomplete claims." (Respondents' Request for Judicial Notice in Support of Demurrer, filed November 3, 2025, Ex. A, page 3, 3.a.ii.) This undermines any reliance on respondents to communicate regarding what might be missing from the submission.

While the facts asserted in a pleading must be accepted as true on demurrer, the same is not true of legal conclusions. Global attaches a copy of the claim it submitted to the First Amended Petition. There is no genuine question as to what was, and wasn't, submitted. The Legislature has established a one-year deadline for filing claims to excess tax sale proceeds with all necessary documentation to support the claim. The Board of Supervisors adopted a policy with respect to claims for excess proceeds, consistent with Revenue & Taxation Code § 4675, and the Tax Collector followed those rules. Instead of arguing it could present facts to show its claim was complete, Global argues that it should not have been required to comply with the policy. Because the time has passed for any additional documentation to be submitted with respect to Global's claim, and because Global did not submit all required information, there is no possibility that Global could cure the incomplete

nature of its claim.

E. Leave to Amend

The facts and admissions asserted by Global preclude amendment in this case. Therefore, as a matter of law, Global cannot support a claim for writ of mandate under the circumstances.

12. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PETITION AND MEMORANDUM OF POINTS AND AUTHORITIES (CONTINUED FROM 03.27.2026)**
FILED BY:
TENTATIVE RULING:

Please see Line 11.

13. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: COMPLAINT (CONTINUED FROM: 03/27/2026)
FILED BY:
TENTATIVE RULING:

Please see Line 11.

14. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: TO PETITION FOR WRIT OF MANDATE (CONTINUED FROM: 03/27/2026)
FILED BY:
TENTATIVE RULING:

Please see Line 11.

15. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: 1ST AMENDED PETITION (CONTINUED FROM: 03/27/2026)
FILED BY:
TENTATIVE RULING:

Please see Line 11.